BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 25 / 2026

M/s Bolan Services & Consultants SMC (Pvt.) Ltd. & Joint Venture Partner M/s Qingdao Lawada Yacht Technology Co. Ltd.

... APPELLANT

Versus

1. Secretary, Fisheries & Coastal Development Department, Government of Balochistan.
2. Chairman Procurement Committee / Additional Secretary, Fisheries & Coastal Development Department, Government of Balochistan.

... RESPONDENTS

Quorum

1. **Mr. Habib Ur Rehman Jamot**.............................. Chairman PRC
2. **Mr. Mubashir Ali Khan (FCIPS)**...........................Member PRC
3. **Engr. Junaid Shah** ....Member PRC
4. **Engr. Muhammad Ayub Nasir** ....Technical Member PRC
5. **Mr. Abdul Hayee Advocate** ....Private Member PRC

DECISION

Dated: 11th February, 2026

1. By the leave of this Committee, the Appellant, being aggrieved by the consequential inaction and the recommendation for re-tendering of a procurement process it rightfully won, has invoked this Committee's authority for final adjudication as per the statutory under Rule 56-A of the BPP Rules, 2014.

2. The Respondent No. 2 invited bids through the BPPRA e-procurement system (ePPS) under TSE-252610895171 for the "Procurement of 02 Aluminum Boats" under the PSDP scheme "Marine Surveillance & Enforcement Capacity Enhancement Program for Maritime Fishery Force," with an Approved Estimated Budget of PKR 1,028,000,000/-. The adopted bidding procedure was Single Stage Two Envelope, utilizing Quality and Cost Based Selection (QCBS) method, with stipulated weightage of 50% for Technical and Financial Score each. Three bids were received and evaluated, where all bids were found to be responsive and were ranked based on the combined score of quality and cost, with the Appellant (in Joint Venture) securing the highest accumulative score of 95.13 and thus, the first rank.

3. The controversy originates from the subsequent meeting of the Respondent's Procurement Committee dated 08 December 2025. Notwithstanding the clear, and rule-compliant outcome of the evaluation process,

the said Committee recommended re-tendering on vague grounds such as "scale, sensitivity, and potential disputes." The Appellant's grievance against this recommendation was placed before the Department's Grievance Redressal Committee (GRC). The GRC, in its minutes dated 09 January 2026, recorded a critical finding: it found no material violation of the BPP Rules, 2014 and no procedural illegality in the concluded bidding process. It characterized the Procurement Committee's recommendation for re-tendering merely as a "prudential administrative measure." Being left in a state of uncertainty, the Appellant filed the instant Appeal.

4. In a significant development, Respondent No. 2 (the Administrative Department) has filed a written submission which materially supports the Appellant's stance, wherein the Respondent categorically states that: (a) the recommendation for re-tendering emanated solely by the Procurement Committee and did not represent the Department's final decision; (b) the recommendation was not based on any identified legal violation or procedural defect in the evaluation; and (c) it was predicated on "anticipated disputes and perceived pressure," which the Department itself acknowledges do not constitute legally sustainable grounds for annulling a completed procurement process under the BPP Rules, 2014.

FINDINGS OF THE COMMITTEE

5. This Committee has examined the record, including the bidding documents, the evaluation report, the minutes of the Procurement Committee and the GRC, and the reply of Respondent No. 2 and the core legal question for determination is:

> **"Whether a procurement process, found to be compliant with the regulatory requirements be invalidated and ordered for re-tendering based on speculative administrative apprehensions unrelated to the integrity of the process itself?"**

6. The answer, unequivocally, is in the negative. The BPP Rules, 2014 establish a self-contained code for public procurement founded on the cardinal principles of fairness, transparency, competition, economy and efficiency (Rule 4). Rule 35 mandates that bids shall be evaluated strictly in accordance with the criteria and terms set forth in the bidding documents. Rule 41, read with Rules 43 and 48, governs the award of contract to the bidder submitting the "lowest evaluated bid." The statutory framework provides specific grounds for cancellation of the bidding process under Rule 38, and for re-issuance of tenders under Rule 39, such as the discovery of a material infirmity in the bidding documents or a declaration of mis-procurement. Nowhere do the Rules allow for the annulment of a lawful process on grounds of "prudential" concerns, "sensitivity," or "fear of potential disputes". To permit such extra-legal considerations would undermine the predictability, objectivity and finality that the Rules are designed to ensure.

7. The findings of the GRC, which have not been challenged by the Respondents, are conclusive on the fundamental point: the procurement process was conducted in conformity with the BPP Rules. The evaluation was objective, transparent and merit based. No legal or procedural infirmity vitiating the process has been identified or established. In this context, the subsequent recommendation of the Procurement Committee to re-tender was arbitrary and represents a clear departure from the principles of public procurement enshrined in the legal framework.

8. Furthermore, the Appellant, having participated in a lawful process and emerged as the highest-ranked bidder, has accrued a legitimate expectation that the process will be concluded in accordance with the Rules. This legitimate expectation is a principle well-recognized in administrative law and is inherent in the promise of fair and transparent procedure held out by the BPP Rules, 2014. To frustrate this expectation based on non-statutory, post-hoc apprehensions would constitute a grave violation of administrative fairness.

9. It is also imperative to reiterate the statutory limitations of this Committee's authority under Rule 56-A. This Committee is a Review and Appellate Forum, not an Executing Agency. Its function is to examine the procurement process for compliance with the law, to correct jurisdictional errors and to provide declaratory relief to uphold the statutory scheme. It is expressly not within this Committee's mandate to outrightly direct the award of a contract to a specific bidder. That executive function resides, by law, with the Competent Authority of the Procuring Agency under Rules 14, 43 and 48.

ORDER

For the detailed reasons recorded hereinabove and in the light of the provisions of the Balochistan Public Procurement Rules, 2014, the Appeal is ALLOWED and the recommendation for re-tendering contained in the Minutes of the Procurement Committee (Respondent No. 1) dated 08 December 2025 is hereby declared to be devoid of legal merit.

However, in accordance with the legal principle stated in Paragraph 9 above, regarding the confines of this Committee's Authority, no mandatory direction for award is issued. Instead, the legal impediment created by the recommendation for re-tendering have been removed, the matter is remanded to the administrative department.

11/2/2026

Habib Ur Rehman Jamot
Chairman

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

11/02/26

Mubashir Ali Khan (FCIPS)
Member

Member
Procurement Review Committee
BPPRA

Engr. Junaid Shah 11/02/26
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Member
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Engr. Muhammad Ayub Nasir
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Abdul Hayee Advocate
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